Notice of child abuse, family violence or risk

Family Law Act 1975 – SECTIONS **67Z, 67ZBA, 69ZQ(1)(aa)**

Please type or print clearly and mark [**X**] all boxes that apply. Attach extra pages if you need more space to answer any questions.

You must file this form if you:

- file an *Initiating Application* or *Response to Initiating Application* seeking parenting orders, including an Application for Consent Orders, or
- make new allegations of child abuse or family violence in parenting proceedings **after** filing an Initiating Application or Response to Initiating Application, or
- your case has been transferred to the Federal Circuit and Family Court of Australia, and you have not previously filed this form.

To be completed by the court

Filed in:

☐ Federal Circuit and Family Court of Australia

☐ Family Court of Western Australia

☐ Other (specify): _____

Client ID: _____

File number: _____

Date filed: _____

Statement of truth

*[I believe] that the facts contained in this Notice are true. I understand that a Judge or Judicial Registrar of the Court and the other parties stated in this application will rely on the facts that I have provided in this Notice as being true.

Your signature

Date: _____

Part A About you (the person completing this form)

1 Your given names: Stephen Christopher

Your surname: Cooke

2 Your date of birth: 27/10/1981

Your gender: Male

3 Are you the applicant or respondent? Applicant

What is your relationship with the child? Father/Husband

4 Full name of person who prepared this form: Samantha Jane Miller

Name of law firm (if applicable): Clarity Lawyers

Address for service (number and street name): 45 Hunter Street

City, state and postcode: Newcastle NSW 2300

Lawyers code (if applicable): CLA7584701

Email: samantha@claritylawyers.com.au

Part B Children named in the application

5 **Child 1**

Given names	Surname	Date of birth	Gender
Joshua Finn	**Cooke**	27/01/2017	Male

Aboriginal	Torres Strait Islander	What is the child's current residential address?
Yes ☐	Yes ☐	

Child 2

Given names	Surname	Date of birth	Gender
Christian Finn	**Cooke**	20/08/2014	Male

Aboriginal	Torres Strait Islander	What is the child's current residential address?
Yes ☐	Yes ☐	

Child 3

Given names	Surname	Date of birth	Gender

Aboriginal	Torres Strait Islander	What is the child's current residential address?
Yes ☐	Yes ☐	

Child 4

Given names	Surname	Date of birth	Gender

Aboriginal	Torres Strait Islander	What is the child's current residential address?
Yes ☐	Yes ☐	

Part C Child abuse or neglect or risk of child abuse or neglect

6 Has a child to whom proceedings relate been abused (or are they at risk of abuse) by a party to proceedings or any other person relevant to these proceedings?

Yes

IF YOU ANSWERED YES TO QUESTION 6, the registry manager must report the allegation to the relevant child welfare authority pursuant to section 67Z(3) and section 67ZA of the *Family Law Act 1975*. In that case, the registry manager may provide such other information as he or she reasonably believes is necessary to enable the child welfare authority to manage the allegations properly.

7 Name the person you allege has subjected or exposed the child to abuse or neglect or who poses a risk to the child.

Heather Anne Cooke

What is the relationship of this person (named in 7) to the child?

Mother

8 Have the allegations been reported to an outside authority (such as police, child welfare authority, school, hospital, a medical practitioner)?

Yes

9 If you reported the allegations to an outside authority, identify to which authority the allegations were reported.

police - E79398857

Date you made the report

02/12/2023

10 If you did not report the allegations to an outside authority, is there a reason?

Provide details.

11 Identify the kind of abuse or neglect the child have experienced (or is at risk of experiencing).

	Child's name	Physical abuse	Emotional/ Psychological abuse	Sexual abuse	Neglect	Exposure to family violence
Child 1	Joshua Finn Cooke	☐	☐	☐	☐	☐
Child 2	Christian Finn Cooke	☒	☐	☐	☐	☐
Child 3		☐	☐	☐	☐	☐
Child 4		☐	☐	☐	☐	☐

12 Have any orders or agreements been made, or formal undertakings given, related to child abuse or neglect? No

If 'yes', provide details.

Child Protection order, undertaking or agreement:

Date	Type of Order	Name of Court	Current?

A copy of the above mentioned order/s should be provided to the Court. Indicate which document the copy is attached to:

- ☐ Initiating Application
- ☐ Response
- ☐ Application for Consent Orders
- ☐ Affidavit
- ☐ Other (please specify):

Provide details of the alleged abuse or neglect, or alleged risk of abuse or neglect in part I.

Part D Family violence or risk of family violence

13 **a.** Do you allege that **you, or another party to the proceedings**, have experienced family violence? yes

b. Do you allege that **you, or another party to the proceedings**, are at risk of experiencing family violence? yes

c. Do you allege that a **child to whom the proceedings relate** has experienced family violence? yes

d. Do you allege that a **child to whom the proceedings relate** is at risk of experiencing family violence? yes

e. Do you allege that a **child to whom the proceedings relate** has suffered (or is at risk of suffering) serious psychological harm from experiencing family violence directly or indirectly? no

IF YOU ANSWERED YES TO QUESTION 13e. the registry manager must report the information to the relevant child welfare authority pursuant to section 67Z(3) and section 67ZA of the *Family Law Act 1975*. In that case, the registry manager may provide such other information as he or she reasonably believes is necessary to enable the child welfare authority to manage the allegations properly.

14 Name the person you allege has subjected or exposed you or the child to family violence

Heather Cooke

What is the relationship of this person (named in 14) to the child? Mother

15 Have the allegations been reported to an outside authority (such as police, child welfare authority, school, hospital, a medical practitioner)? Yes

16 If you reported the allegations to an outside authority, identify to which authority the allegations were reported.

Police - E79453561

Date you made the report 18/11/2023

17 Identify the kind of family violence that you allege that you, or the child have experienced:

	Name	Physical	Emotional/ Psychological	Sexual	Financial	Property damage	Threatening comments	Exposure to family violence
You	Stephen Christopher Cooke	☐	☒	☐	☒	☐	☒	☒
Child 1	Joshua Finn Cooke	☐	☐	☐	☐	☐	☐	☐
Child 2	Christian Finn Cooke	☒	☐	☐	☐	☐	☐	☐
Child 3		☐	☐	☐	☐	☐	☐	☐
Child 4		☐	☐	☐	☐	☐	☐	☐

18 Have you had or do you have any of the following types of orders and are they current?

Family Violence Order, Personal Protection Injunction, undertaking or agreement in place of order:

Date	Type of Order	Name of Court	Current?

A copy of the above mentioned order/s, injunction, undertakings or agreements should be provided to the Court. Indicate which document the copy is attached to:

- ☐ Initiating Application
- ☐ Response to Initiating Application
- ☐ Application for Consent Orders
- ☐ Affidavit
- ☐ Other (please specify):

Provide details of the family violence experienced by you or the child, or risk of family violence in part I.

19 Have you, or the other parent, or a party to the proceedings, been charged with, or convicted of, a criminal offence related to family violence, or been the subject of those charges? No

20 Name the person you allege has been charged or convicted

What is the relationship of this person (named in 20) to the child?

Alleged charge/s or conviction/s:

Date	Court	Charge or conviction	Penalty

Part E Drug, alcohol or substance misuse

21 Do you allege that drug, alcohol or substance misuse by you, or the other parent or a party to the proceedings, has caused harm or poses a risk of harm to the child?

Yes

22 Provide the name of the person you allege has caused harm or poses a risk of harm.

Heather Cooke

What is the relationship of this person (named in 22) to the child?

Mother

23 Provide details of the alleged harm or risk of harm to the child arising from drug, alcohol or substance misuse.

Mean and short tempered. Slaps Chistian on his face to control behaviour.

24 Have you, or the other parent or a party to the proceedings, been charged with, or convicted of, a criminal offence or traffic offence related to drug, alcohol or substance misuse?

No

25 Name the person you allege has been charged or convicted

What is the relationship of this person (named in 25) to the child?

Mother

Alleged charge/s or conviction/s:

Date	Court	Charge or conviction	Penalty

Part F Mental health issues

26 Do you allege that the mental health issues of the other parent, or a party to the proceedings have caused harm or pose a serious risk of harm to the child?

No

27 Provide the name of the person you allege has caused harm or poses a serious risk of harm to the child arising from mental health issues.

What is the relationship of this person (named in 27) to the child?

28 Provide details of the alleged harm or risk of harm to the child arising from the mental health issues.

Part G Abduction or threats of harm

29 Do you believe that the child is at risk of being abducted? No

If 'yes', why do you believe the child may be abducted? Provide details.

30 Have there been any recent attempts to abduct the child?

If 'yes', provide details.

31 Have there been any recent threats to harm the child or another person relevant to the proceedings?

If 'yes', provide details.

32 Name the person you allege has recently threatened to abduct or harm the child or another person.

What is the relationship of this person (named in 32) to the child?

33 Does the child have a valid passport? Country of issue

Describe the threats of abduction of the child or threats to harm the child or another person in part I.

Part H Other concerns about the child

34 Do you have any other significant concerns about the safety and wellbeing of the child? No

If 'yes', provide details

Part I Details of the alleged abuse

35 If you have provided information related to abuse, neglect or family violence, or risks posed by substance misuse, mental health issues or abduction in this form, provide details of what caused you to become concerned about those matters.

1. Briefly describe what happened and when	What action (if any) was taken and by whom?
On 6 September 2023, the Mother was putting the children to bed. The Father heard Christian Cooke (Child 2) ("**Christian**") scream and then yell words to the effect of: *"You hit me, I'm bleeding and I can taste blood."* The Father immediately rushed upstairs. The Father subsequently questioned the Mother about what had happened and she indicated that she wanted a divorce, with no further discussion about what had occurred. The Father alleges that Heather had hit Christian across the face.	I calmed the child and attempted to discuss the issue with the Respondent.

2. Briefly describe what happened and when	What action (if any) was taken and by whom?
On 18 November 2023, the Father witnessed the Mother strike Christian across the face again whilst they were in the matrimonial bedroom watching a movie.	I sought advice from my solicitor who wrote to the Respondent Mother regarding future parenting arrangements. A proposal was made which I thought would minimise the risk by minimising the duration of the time the children spent with the Respondent Mother. I also spoke to my GP though did not go into detail as I was worried about potential repercussions for Heather.

3. Briefly describe what happened and when	What action (if any) was taken and by whom?

Part J Steps or orders required to protect safety and wellbeing

36 Which orders do you want the court to make to protect the safety of the **child**?

Provide details.

37 Which orders do you want the court to make to protect **your** safety?

Provide details.

Part K How the proposed orders deal with the matters raised

38 If you are filing an Application for Consent Orders, and you have provided information related to abuse, neglect or family violence, or risks posed by substance misuse, mental health issues or abduction, state briefly how the proposed orders attempt to deal with those matters.

Provide details.

Part L Attending court

In most cases, you are required to attend court in person, unless the court has given permission for you to be excused. If you do not attend court, the court may make orders in your absence on the information available. If you have concerns for your safety, the court can make a safety plan and, in some circumstances, may be able to make special arrangements for the hearing.

39 Do you feel unsafe being in the same room as the other parent or a party to the proceedings? No

If yes, provide details of any special arrangements you would like to be made for your safety.